

Kripal v. State of U.P. And 2 Others

Allahabad High Court · Division Bench · 14 July 2022 · WRIT - C No. 19267 of 2022 · **Writ disposed; liberty to file Para 6.8 objection with stay of coercive recovery.**

HEADNOTE

A writ seeking to quash a Rs. 2,12,876 demand notice was disposed of without examining merits. On the licensee's statement that an objection would be decided in a time-bound manner, the consumer was given liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the assessing officer was directed to decide it after hearing within the next four weeks; coercive action was stayed for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

The petitioner, Kripal, challenged a demand notice dated 31 March 2021 issued by the power distribution corporation for Rs. 2,12,876, seeking certiorari to quash it, a mandamus restraining coercive recovery, and a direction to decide his representation dated 2 May 2022. Counsel for the distribution corporation stated that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory-objection-alternate-remedy

HOLDING

Where a consumer challenges a demand notice in writ and the licensee states that an objection will be decided in a time-bound manner, the Court may dispose of the petition without examining merits by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing decision after hearing within a stipulated period, and staying coercive recovery for a limited period pending that disposal. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Petitioner given liberty to file a Para 6.8 objection within four weeks; respondent no. 2 directed to decide it after hearing within the next four weeks; coercive action stayed for eight weeks or until disposal, whichever earlier. ¶ 1

para-6.8-objection-alternate-remedy Writ against the demand notice disposed of without opinion on merits, relegating the consumer to the statutory objection under Para 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 31.3.2021

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1